

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emma Kaisla	Team: Squad #15	CCRB Case #: 202007690	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/17/2020 3:28 PM, Saturday, 10/17/2020 4:30 PM	Location of Incident: § 87(2)(b) 60 PCT stationhouse	18 Mo. SOL 5/4/2022	Precinct: 60		
Date/Time CV Reported Mon, 12/21/2020 10:09 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/21/2020 10:09 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Anthony Contessa	28493	901356	060 PCT
2. POM Jiantong Li	12604	967579	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kurt Cani	15367	948191	060 PCT
2. POM Anthony Farag	02924	961751	060 PCT
3. LT Michael Desposito	00000	948876	AUX P.S
4. POM Raymond Branca	19705	958327	060 PCT
5. POF Christina Dagostino	04033	958460	060 PCT
6. SGT James Robinson	01392	953322	063 PCT
7. POM Robert Desena	03631	961726	060 PCT
8. POM Christophe Fitzpatrick	29869	967066	060 PCT
9. POM Connor Keane	26409	967138	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Anthony Contessa	Discourtesy: Police Officer Anthony Contessa spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B . POM Jiantong Li	Abuse: Police Officer Jiantong Li did not obtain medical treatment for § 87(2)(b)	§ 87(2)(b)
C . POM Anthony Contessa	Abuse: Police Officer Anthony Contessa did not obtain medical treatment for § 87(2)(b)	§ 87(2)(b)

Case Summary

On December 21, 2020, § 87(2)(b) filed this complaint by phone with the CCRB. § 87(2)(b) made her statements in Russian interpreted by the Language Line and with translation edits by Inv. Kaisla.

On October 17, 2020, at approximately 3:28 p.m., § 87(2)(b) called the police over a dispute with her housemates. Police including PO Anthony Contessa of the 60 PCT responded and arrested § 87(2)(b). While officers loaded § 87(2)(b) into a patrol vehicle, § 87(2)(b) stated she wanted to file a complaint and PO Contessa told her “you know what you can do with your complaint” (**Allegation A: Discourtesy—word,** § 87(2)(g)). At the stationhouse, § 87(2)(b) waited in a holding cell for four hours, during which she asked PO Contessa and PO Jiantong Li for medical attention due to underlying heart conditions she suffered. Both officers ignored her requests (**Allegation B: Abuse of authority—refusal to obtain medical treatment,** § 87(2)(g)). **Allegation C: Abuse of authority—refusal to obtain medical treatment,** § 87(2)(g). § 87(2)(b) never received medical treatment while in custody and was ultimately released with a Desk Appearance Ticket.

There is BWC from PO Raymond Branca, PO Kurt Cani, PO Anthony Contessa, PO Christina D’Agostino, PO Christopher Fitzpatrick, PO Connor Keane, PO James Robinson, and PO Robert Desena (Board Reviews 02-10, summarized in Board Review 11). There is no stationhouse footage because § 87(2)(b) filed her complaint after the stationhouse footage had expired.

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Anthony Contessa spoke discourteously to § 87(2)(b).

Multiple BWC recordings show that as officers put § 87(2)(b) into the police vehicle on scene, she stated she wanted to make a complaint against the officers (Board Review 08, 7:30 minutes into the recording). PO Contessa replied “you know what you can do with your complaint.”

While he initially denied the remark, when shown the BWC recording PO Contessa conceded he did say it and testified he meant that § 87(2)(b) knew what to do with it. When asked what specifically she could do with her complaint, PO Contessa stated he did not know what she wanted to do with it. He did not independently recall the exchange and did not know why he said it. On reviewing the video, he did not know what he meant by “you know what you can do” with the complaint.

While PO Contessa testified to being unfamiliar with the meaning of his remark, “you know what you can do with it” is a common English-language idiom generally considered to be rude and euphemistic. The investigation does not find it credible that PO Contessa was unfamiliar with the expression, or further that he would have employed it in the context he did if he were truly unfamiliar with its meaning.

Patrol Guide Procedure 200-02 requires officers to maintain a higher standard of integrity than is generally expected of others and to render services with courtesy and civility (Board Review 18)

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Jiantong Li did not obtain medical treatment for § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Anthony Contessa did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) gave a statement regarding this case on December 21, 2021 (Board Review 01). § 87(2)(b) filed a Notice of Claim that was consistent with her CCRB complaint (Board Review 20). § 87(2)(b) another prisoner held in the holding cell area at the same time as § 87(2)(b). § 87(2)(b) gave a statement on January 22, 2021 (Board Review 13). Both § 87(2)(b) and § 87(2)(b) gave statements in Russian with interpretation by the Language Line and Inv. Kaisla.

It is undisputed that § 87(2)(b) did not receive medical treatment while in custody.

§ 87(2)(b) testified that she had ongoing medical concerns related to a recent heart attack and therefore took heart medication. She first began feeling unwell in the vehicle on the way to the stationhouse. She asked for her medication but officers—she did not recall which—told her she could not have it. Officers placed her in a room with two cells; in the other cell was a man who she spoke with and who gave his name as § 87(2)(b). He was Georgian but also spoke Russian. They spoke and he explained to her the police could not give her medication, but that they would take her to the hospital since she was ill. While in the cell, § 87(2)(b) asked for medical attention twice. She told both PO Contessa and a “Chinese” officer that she felt ill, had pain in her chest, and needed her medicine. Both officers refused to get her medical attention and told her she would not be there long. Observing this, § 87(2)(b) told her he could be a witness to her treatment and provided her his contact information. Eventually officers took § 87(2)(b) away, and for the remaining two hours no one entered the cell area. § 87(2)(b) saw cameras, so she waved her left arm at the camera and climbed onto the cell bench and stood on it. She held her other hand to her heart and pointed at her chest to indicate she had chest pain. She cried and yelled “I need help.” No officer came to her or provided any medical attention during the duration of her time in custody.

The investigation contacted § 87(2)(b) who testified that he was being held in a cell in the 60 PCT stationhouse when officers brought a woman to the other cell. He spoke in Russian with her. § 87(2)(b) was in the cell for about 4 hours and he estimated he and the woman were in the cells together for about 3 to 3.5 hours. The woman in the cell complained to the police officers that she was in pain and her heart hurt. She told them this many times. She told them she had heart problems and could not live without her medication. Her bag and her coat were nearby, and § 87(2)(b) and the woman could see her items from their cells. The woman told the officers that her medicine was in her bag. She screamed, cried, and begged the officers for her medication and they did not give it to her. The first police officer the woman spoke to was a 5’4 or 5’5” white male, older than 50 years old, with light grey hair. To the woman's requests for help, he said “okay, okay” and said he would help soon, but then left and never did anything for her. About an hour later a second police officer—about 35 years old and Asian, possibly Chinese—came to the cell area with a piece of paper. The woman signed the paper and asked him for medication and help. He too left without giving her medication or assistance.

The command log shows that PO Archangel arrested an individual with a long last name beginning § 87(2)(b) at 1p.m., although his name is incorrectly spelled and the handwriting in the entry is essentially illegible (Board Review 12). A review of the Prisoner Holding Cell Roster shows that PO Archangel lodged § 87(2)(b) in the cells at 1p.m. and removed him at 7:10p.m. (Board Review 12).

PO Cani's BWC captures PO Li standing behind the desk as PO Cani processes § 87(2)(b) arrest (Board Review 03). PO D'Agostino and PO Contessa's BWC show the officers initially lodging § 87(2)(b) in the cells, but no officer's BWC captures events later than that, when the officers allegedly refused § 87(2)(b) requests

Both § 87(2)(b) and § 87(2)(b) described a "Chinese" male officer. Cross referencing the date's Roll Call with CTS pedigree information, there were five male officers identifying as Asian working that tour. PO Gui Li, PO Louie, PO Zubair, PO Zahid worked "suppression team" and began their tours at 7:30p.m., after § 87(2)(b) had already been taken to Central Bookings. PO Jiantong Li was the sole remaining Asian male officer and he worked as TS (telephone switchboard) operator, a stationhouse assignment. He worked a regular tour beginning at 3p.m. Additionally, PO Li identified himself as the officer standing behind the desk in BWC footage from § 87(2)(b) arrest. Therefore, the investigation identified him as a subject of the allegation.

PO Contessa is a 5'6" tall white male and was 52 years old at the time of the incident. While PO Contessa listed his hair as brown on his pedigree sheet, in BWC his hair often appears grey (e.g. PO Robinson's BWC, 2:30 minutes) (Board Review 16, 08). PO Li is an Asian male, 32 years old at the time of the incident (Board Review 17).

PO Contessa and PO Li testified consistently that procedure does not allow officers to provide civilians with their medication, but if a civilian needs medication while in custody, officers will call them an ambulance so medical professionals can administer whatever is needed. Neither officer recalled interacting with § 87(2)(b) at the stationhouse.

PO Contessa did not recall speaking to § 87(2)(b) about her health while she was in the cell area or her complaining to him that she was not feeling well. He did not recall her asking him for her medication and did not recall informing her he was not able to provide it. He did not recall her informing him she had recently had a heart attack. He did not recall § 87(2)(b) asking him or any other officer to go to the hospital. He did not recall her stating that she felt ill, had pain in her chest, or needed medication. He did not recall her standing on the bench in the holding cell waving her arms. He did not hear or observe § 87(2)(b) yelling "I need help." PO Contessa was not aware of § 87(2)(b) having any sort of medical incident in the stationhouse.

PO Li did not independently recall the incident on October 17, 2020, was not familiar with anyone by the name of § 87(2)(b) and did not recognize her when shown her photograph. He testified that at the time of the incident he was working as the TS operator. The TS desk and the desk officer's desks were separate. There was a screen behind the desk officer's desk that displayed a feed from cameras in the cell area. PO Li was not able to see that screen from the TS desk. However, PO Li identified himself in BWC as standing behind the desk officer on PO Cani's BWC recording. He explained he was helping the desk officer even though his formal assignment was TS. PO Li did not recall if he ever went into the holding cell area. No prisoner ever informed PO Li that she needed medical attention, that she had heart trouble, that she had pain in her chest, or that she needed medication. PO Li did not recall § 87(2)(b) yelling into the stationhouse that she needed medical attention. PO Li never saw, either on the desk officer's screen or in person, § 87(2)(b) standing on the bench in the cell waving at the camera. PO Li never specifically told § 87(2)(b) that he could not provide her medical services.

While both officers had no specific recollection of interacting with § 87(2)(b) at the stationhouse and denied refusing to provide her medical treatment, documentary evidence places both at the stationhouse at the time § 87(2)(b) was in the cell. Although § 87(2)(b) provided § 87(2)(b)

§ 87(2)(b) contact information to the investigation. § 87(2)(b) was arrested prior to § 87(2)(b) for unrelated reasons, did not know her before meeting her in the cells, and had no apparent relationship to her. When he gave his statement, he referred to her only as “the woman.” Furthermore, § 87(2)(b) provided specific testimony corroborating § 87(2)(b) account, including details § 87(2)(b) herself did not provide the CCRB –e.g. PO Li’s apparent age (consistent with PO Li’s actual age). Given that an independent witness corroborated § 87(2)(b) account of requesting treatment for her heart condition from PO Contessa and PO Li, the investigation credits that § 87(2)(b) did so.

Patrol Guide Procedure 210-04 states that officers must request an ambulance when a prisoner in custody requires medical treatment (Board Review 15).

§ 87(2)(b) stated she required medical attention. Both officers acknowledged they were not medical professionals; therefore, neither would have been equipped to determine that § 87(2)(b) did not require medical attention. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

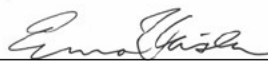
- § 87(2)(b)
- PO Li has been a member of service for two years and has been a subject in four other CCRB complaints and seven allegations, all of which are still under investigation. § 87(2)(g)
- PO Contessa was a member of service for 29 years and was a subject in 15 other CCRB complaints and 21 allegations, of which one allegation was substantiated:
 - 9403234 involved a substantiated allegation of force against PO Contessa. No punishment was recommended or imposed.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest, wrongful detention, intentional and negligent infliction of emotional harm, personal injury, negligence, negligent hiring and retention, negligent supervision and training, abuse of process and denial of medical care and services, and seeking \$800,000 as redress (Board Review 20). A FOIL request regarding any 50H hearing was submitted to the NYC Comptroller and the results will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 15

Investigator:


Signature

Inv. Emma Kaisla
Print Title & Name

12/23/21
Date



CCRB Case # 202007690

Squad Leader:	_____	IM Simon Wang	01/03/22
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date